



Bart Lorang &lt;lorangb@gmail.com&gt;

## Questions re: Dowe Flats Reclamation

Case, Dale <dcase@bouldercounty.org>  
To: Bart Lorang <lorangb@gmail.com>

Fri, Oct 28, 2022 at 2:46 PM

1. Who is responsible for ongoing oversight of the Dowe Flats Mine Reclamation process? Boulder County? Or DRMS? Or the Operator? Or some combination?  
DRMS.

DRMS is the permitting agency and is the entity who will make final determinations on reclamation. The County's SU we will ensure the property is reclaimed per the DRMS permit.

2. The DRMS Permit Area for #M1993041 (Dowe Flats) now actually \*overlaps\* with the DRMS Permit Area for #M1977208 (Lyons Quarry). M1993041 extends south of HWY 66. This was codified in Technical Revision #4 made in 2020, as it was revealed that the Permit Area, Reclamation Plan, and the Financial Bond wasn't sufficient to cover the demolition of the conveyor belt. However, the County Level permit, SU-93-14, was not revised in 2020 along with Technical Revision #4 of M1993041, and now only covers a \*portion\* of #M1993041, and does not cover the area where the Conveyor extends, operates encroaches onto the plant site south of HWY 66. As such, who is responsible for oversight of demolition and destruction of the Conveyor that extends both North and South of HWY 66? Boulder County? DRMS? Or the Operator? Or some combination?

It will be a combination. The operator will need to remove the facilities and structures, including the conveyor. DRMS and the County will ensure this is completed.

3. Related to #2, given the conveyor was built and completed in 1997, does Boulder County consider the Conveyor portion South of HWY 66 an Accessory Structure to the Nonconforming Use of the Cement Plant? Or does Boulder County consider the Conveyor portion south of HWY 66 part of the ongoing legal Nonconforming Use of the Cement Plant? The conveyor system was related to the mining approval and accessory.

4. Is the Conveyor still allowed to operate? Under what Special Use Permit does the Conveyor exist and/or operate? The conveyor transporting materials from Dowe Flats to the plant property. The conveyor was constructed to transport material from Dowe Flats to the plant. If CEMEX wishes to utilize any part of the system for the plant we would need to analyze the request and determine if it was permissible under the Nonconforming status. At this time we expect the improvements constructed as part of the Dowe Flats Quarry to be removed as required by state or county regulations.

5. How can citizens and residents be kept up-to-date on progress and timelines with respect to reclamation of Dowe Flats mine and demolition of the conveyor?

We are going to work at putting together a few people at the County to monitor activities related to the mine closure (and impacts on the plant). You can check in with me as we get this arranged and hopefully we will be able to develop a website we can keep updated with timeline and information as we learn it. Full authority and updates for the reclamation lies with the state and you can monitor any requests or other activities through the state web site -- <https://drms.colorado.gov/information/permitting-actions-currently-under-review>

Please let me know any further questions. Thanks.

Dale Case

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**From:** Bart Lorang <[lorangb@gmail.com](mailto:lorangb@gmail.com)>  
**Date:** Friday, October 14, 2022 at 12:57 PM  
**To:** Case, Dale <[dcase@bouldercounty.org](mailto:dcase@bouldercounty.org)>  
**Subject:** Re: [EXTERNAL] Questions re: Dowe Flats Reclamation

Dale,

Thanks very much, much appreciated. Have a great weekend!

Bart

On Fri, Oct 14, 2022 at 12:53 Case, Dale <[dcase@bouldercounty.org](mailto:dcase@bouldercounty.org)> wrote:

Bart,

We will work at getting you a response by early next week. Thank you.

Dale

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**From:** Bart Lorang <[lorangb@gmail.com](mailto:lorangb@gmail.com)>  
**Sent:** Friday, October 14, 2022 7:25 AM  
**To:** Case, Dale <[dcase@bouldercounty.org](mailto:dcase@bouldercounty.org)>  
**Subject:** [EXTERNAL] Questions re: Dowe Flats Reclamation

Hi Dale,

I have received several questions from Lyons residents about progress of Dowe Flats reclamation, and I wanted to relay them to you, below. Thanks in advance for the help!

1. Who is responsible for ongoing oversight of the Dowe Flats Mine Reclamation process? Boulder County? Or DRMS? Or the Operator? Or some combination?  
DRMS. County must sign off to ensure compliance with SU.

2. The DRMS Permit Area for #M1993041 (Dowe Flats) now actually \*overlaps\* with the DRMS Permit Area for #M1977208 (Lyons Quarry). M1993041 extends south of HWY 66. This was codified in Technical Revision #4 made in 2020, as it was revealed that the Permit Area, Reclamation Plan, and the Financial Bond wasn't sufficient to cover the demolition of the conveyor belt.

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